1951

F

FAR EASTERN DEPARTMENT

JAPAN

91

FJ 1022/365

FROM

F.O.R.D. Memorandum (W. Hilliard)

No. 1

Dated 2nd May 1951.

Received in Registry— 5th May 1951

Sovereignty over the Habomai Islands: Case for the return of all the Kuriles to Japan.

REFERENCES

FJ 10114/5 (1950)

MINUTES

Draft.

Resubmit after Issue.

B.H. Maddocks
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(Print)

(How disposed of)

Dft. Treaty Japan. May 51

(Action completed)

(Index)

Kemp 2/7/51

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B.V. 31.5.51.

C.C.P. (Mori) 23/5.

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Sovereignty over the Habomai Islands — 93

The Habomai Group is a small archipelago lying near and parallel to the southern Kuriles and is geologically an extension of the Nemuro peninsula of Hokkaidô. The largest and furthest island of the group, Shikotan, is sometimes excluded from the islands covered by the term "Habomai".

2. These islands are involved in three alternative arguments which some Japanese advance concerning the territorial clauses in the peace treaty.

I. The Case for the Return of All the Kuriles to Japan

3. The Potsdam Declaration of the 26th July, 1945, to which the Soviet Union expressed its adherence on the 8th August, 1945, stated that "(8) The terms of the Cairo Declaration shall be carried out ..." The Cairo Declaration states that "The three great Allies ..... covet no gain for themselves and have no thought of territorial expansion. It is their purpose that Japan shall be stripped of all the islands in the Pacific which she has seized and occupied since ... 1914, and that all the territories that Japan has stolen from the Chinese ... shall be returned to the Republic of China. Japan will also be expelled from all other territories which she has taken by violence and greed ..."

4. The earliest international document relating to these islands, the Russo-Japanese Treaty of Commerce, of Navigation and of Delimitation signed in 1855, shows Japan in peaceful possession of the southern Kuriles and (by implication) of the Habomai Group. The northern Kuriles were acquired not by violence and greed but in exchange for the cession to Russia of rights in Sakhalin - rights peacefully acquired, previously held and acknowledged by the treaty of 1855. The exchange

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was effected under the Russo-Japanese Treaty of Mutual Cession signed in 1875.

5. The Japanese argument is therefore that the Allies, including the Soviet Union, are bound by the Potsdam and Cairo declarations - which Japan accepted, as a condition of surrender not to expand territorially at Japan's expense save in so far as they have to do so in the stripping Japan of islands seized since 1914, of territories stolen from China or of territories taken by violence or greed. Since the Kurile and Habomai islands fall into none of these groups the Allies are bound to leave them to Japan.

II The Case for the Return of the Southern Kuriles to Japan

6. The Livadia (Yalta) agreement of 1945 undertook that "The former rights of Russia violated by the treacherous attack of Japan in 1904 shall be restored, viz.:-

a) The southern part of Sakhalin as well as all the islands adjacent to it shall be returned to the Soviet Union.
b) . . ."

The same agreement undertook in a separate clause that "The Kuril islands shall be handed over to the Soviet Union", and concluded that "these claims of the Soviet Union shall be unquestionably fulfilled after Japan has been defeated".

7. Some Japanese, feeling no doubt that in the face of this agreement of the great Powers the arguments for the return to Japan of all the Kuriles cannot prevail, adopt a second position. They endeavour to exclude the southern Kuriles and the Habomai group from the scope of the Livadia agreement on the grounds that these islands had never, prior to 1945, belonged to any national state save Japan. The treaty of 1855 drew the frontier between Russia and Japan "entre les îles Itouroup et Ouroup". Etorou (Itouroup), Kunashiri and the Habomai Group had never previously formed part of the Russian Kuriles

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8. The argument for the return of all the Kuriles is felt moreover to apply with a stronger force and with greater historical justification to these southerly islands..

III The Case for the Return of the Habomai Group to Japan

9. Since however, geography and the Japanese administration have combined to associate the name "Kurile" with all the islands from Kunashiri to Shumushu, some Japanese appear to recognise the unlikelihood of a claim to any part of the Kurile archipelago being successful, but still maintain a third position by claiming the return of the Habomai Group alone. These islands they claim to belong neither geographically nor administratively nor in any other sense to the Kuriles.

10. Prior to the Meiji restoration the Kuriles (Chishima) formed the eleventh of the Hokkaidô provinces (Kuni) while the Habomai islands were a part of the province of Nemuro. After the redivision into administrative prefectures the administration of Hokkaidô was placed on a basis somewhat different from that of other parts of Japan. It appears that the Kuriles were to some extent administered from the town of Nemuro. Japanese school maps of the 1930s however show a boundary line passing between the Kuriles and Hokkaidô with Shikotan Island on the Kurile side and the remainder of the Habomai Group on the Nemuro side. It is probable that enquiry in Japan would confirm that this line conforms to the historical administrative tradition.

11. The memorandum by Mr. Waterfield enclosed in FJ 10114/5 of 1950 includes an account of how the Russians came to occupy the Habomai Group.

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Conclusion and Recommendations

12. A general answer to all these Japanese claims is contained in the Potsdam Declaration, in the second part of the clause whose first part was quoted above. This reads "....and Japanese sovereignty shall be limited to the islands of Honshû, Hokkaidô, Kyûshû, Shikoku and such minor islands as we determine". Although this may seem hot wholly consistent with the carrying out of the "terms of the Cairo declaration" it was accepted by the Japanese as the basis for surrender. It can presumably be used as a basis for denying to Japan a sovereignty over any of these islands which we wish to deny her.

13. With regard to the Kuriles we should presumably honour our bond by handing them over to the Russians. Our interpretation of the word "Kuriles" should probably include Etorou and Kunashiri.

14. With regard to the Habomai Group it would appear more correct in us to recognise Japanese de jure sovereignty and Soviet de facto occupation. It would do us harm with the Japanese - and little good with the Russians - to become a party to this Soviet theft, albeit a small one. It would seem necessary however to ensure that the Japanese realise that this does not in any way commit us to eject or to assist in ejecting the Russians.

15. With regard to Shikotan Island it seems desirable to obtain expert opinion from Tokyo on whether it is more correct to consider it covered by or excluded from the denotation of the term Kuriles. If in Japanese documents it normally figures as a part of the Kuriles we might be putting ourselves in the wrong were we to dissociate it from them. In such a case Article I of our draft of the Treaty should be modified.

R.S. Milward.

Research Department,
Foreign Office.

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Chancery
U.K.L.M.
Tokyo.
from
Japan and Pacific Dept.

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Copy of memo. within

RECEIVED IN DISTRICT REGISTRY
9 MAY 1951
9/5/51
DESPATCHED

We enclose a copy of a memorandum prepared by Research Dept. on the HABOMAI Islands.

2. We should be grateful for your observations on this memorandum, especially on the question whether or not SHIKOTAN should be considered as part of the

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